

**BEFORE THE
COMMISSION ON TEACHER CREDENTIALING
STATE OF CALIFORNIA**

In the Matter of the Accusation Against:

ALEXANDROS ROBERT ACEDO, Respondent

Agency Case No. 2-516516716

OAH No. 2025040775

PROPOSED DECISION

Christopher W. Dietrich, Administrative Law Judge (ALJ), Office of Administrative Hearings (OAH), State of California, heard this matter on September 16, 2025, by videoconference from Sacramento, California.

Stephanie Alamo-Latif, Deputy Attorney General, represented complainant Mary Vixie Sandy, Ed.D., Executive Director of the California Commission on Teacher Credentialing (Commission).

Joshua Richtel, Attorney at Law, represented respondent Alexandros Robert Acedo, who was present.

Evidence was received, the record closed, and the matter submitted for decision on September 16, 2025.

FACTUAL FINDINGS

Jurisdictional Matters

1. On May 26, 2015, the Commission issued a Clear Single Subject Teaching Credential (Credential) to respondent. The Credential will expire on June 1, 2030, unless renewed. The Commission previously issued a Preliminary Five-Year Single Subject Teaching Credential to respondent on January 4, 2013, which expired on February 1, 2018. The Commission previously issued Emergency 30-Day Substitute Teaching Permits to respondent as follows: (1) August 23, 2006, which expired on September 1, 2007; (2) December 5, 2008, which expired on July 1, 2010; (3) July 26, 2010, which expired on August 1, 2011; and (4) October 13, 2011, which expired on November 1, 2012.

2. On January 24, 2025, complainant, acting solely in her official capacity, signed and thereafter filed an Accusation against respondent's Credential. Complainant seeks to revoke all credentials, certificates, and authorizations issued to respondent based upon unprofessional conduct, immoral conduct, acts of moral turpitude, and evident unfitness for service. Specifically, the Accusation alleges that respondent was convicted of driving under the influence of alcohol (DUI) on January 6, 2023.

3. Respondent timely filed a Notice of Defense to the Accusation. The matter was set for an evidentiary hearing before an ALJ of the OAH, an independent adjudicative agency of the State of California, pursuant to Government Code section 11500 et seq.

January 6, 2023 Conviction

4. On January 6, 2023, in the Superior Court of California, County of Fresno, Case No. M22912025, respondent was convicted by plea of nolo contendere of violating Vehicle Code section 23152, subdivision (b), DUI with a blood alcohol content (BAC) of 0.08 percent or higher, a misdemeanor. Respondent was sentenced to 180 days in jail, with 176 days stayed, and three years of probation. He was approved to serve his jail sentence through an adult offender work program. He was ordered to complete a level 1 DUI program and a 12-week parenting class. He was further ordered to pay fees and fines.

5. The circumstances underlying this conviction occurred on September 21, 2022. Officers of the City of Fresno Police Department (Fresno PD) were dispatched in response to reports that an intoxicated male had driven a motor vehicle with children inside. Upon arrival, the officers contacted respondent, who admitted to driving after consuming two beers. Respondent's children, ages four and eight, were in the car.

Respondent failed to adequately perform field sobriety tests. He submitted a breath sample for a preliminary alcohol screening test, which resulted in a BAC of 0.19 percent. An officer arrested respondent for DUI. After his arrest, respondent initially consented to a blood draw. However, before the blood draw was administered respondent screamed, "You better not get that needle close to me, I'll fuck you up!" at an officer and a phlebotomist. When the officer asked respondent if he wanted to complete a breath test instead he responded, "Fuck you!" When respondent was asked if he wanted to complete a blood test he responded, "Fuck you! If you get that needle close to me, I'll kick you right in the balls!" The officer obtained a search warrant for respondent's blood. Respondent then cooperated with the blood draw without being restrained. He told the officer he was afraid of needles.

Respondent's Evidence

RESPONDENT'S TESTIMONY

6. Respondent is 42 years old and lives in Fresno, California. He has been a teacher for the Fresno Unified School District (Fresno USD) for 12 years. His children are students in the Fresno USD. He has taught seventh grade world history at Tenaya Middle School (Tenaya) since January 2024. He taught at the School of Unlimited Learning (SOUL), a high school in the Fresno USD, at the time of his DUI arrest and conviction. He resigned his position at SOUL at the conclusion of the 2022-2023 school year.

7. Respondent consumed alcohol prior to picking up his children from their gymnastics lesson in Fresno on September 21, 2022. He did not recall how much alcohol he drank before his arrest. He explained that he consumed alcohol after he ended his teaching day because he had an argument with his wife. He acknowledged that he swore and threatened officers after his arrest. His fear of needles caused him to act impulsively when his blood was about to be drawn. He regrets his conduct.

8. Respondent was arrested and convicted of DUI in 2011. Respondent accepted that he is an alcoholic after his September 2022 DUI arrest. He previously resisted being labeled an alcoholic, but accepted it after he drove while intoxicated with his children in the car. He realizes that his alcoholism is a disease and there is no amount of alcohol that he can drink safely.

9. Respondent completed a three-month outpatient recovery program with My Time Recovery in January 2023. He has attended Alcoholics Anonymous (AA) off and on for years. He began attending AA two to three times per week in January 2023. He provided sign-in sheets showing his AA attendance between July 6, 2024, and June

11, 2025. Respondent has had multiple AA sponsors. He is working through AA step one with his current sponsor but has previously completed AA steps one through four with a prior sponsor. He explained that AA's practice is for participants to restart the steps if they start working with a new sponsor. Respondent participates in a running group with other AA attendees, attends church, and makes music to support his sobriety. His friends and family are supportive of his sobriety.

10. According to a report from the Fresno PD, officers were dispatched to respondent's residence on November 9, 2024, in response to calls regarding a domestic disturbance. Upon making contact with respondent, the responding officers noticed a strong odor of alcohol emitting from respondent's body. Respondent told the officers that he consumed alcohol before they arrived. At hearing, respondent denied consuming alcohol on this date.

11. Respondent has been sober from alcohol since December 25, 2024. He testified that he previously was sober between October 2 or 3, 2022, and December 23, 2024. Respondent consumed alcohol on December 24, 2024, after his wife made inappropriate comments to their children about things he did when he was younger. He has since separated from his wife.

12. Respondent realized that his coping strategies were insufficient after his December 24, 2024 relapse. He began seeing a therapist in January 2025. His therapist has helped him identify what triggers his alcohol consumption. Respondent identified marital conflicts and "having too much time on his hands" as his triggers. He is working with his therapist to develop coping strategies to avoid future relapses.

13. Respondent served his adult work program sentence. He completed a parenting class and DUI program as the court required. He has paid all fees and fines. He has fully complied with his probation.

RYAN DUFF'S TESTIMONY

14. Ryan Duff is the Principal at Tenaya. He has held this position for four years and has worked in the Fresno USD for 28 years.

15. Respondent has worked as a seventh-grade social studies teacher at Tenaya since January 2024. Mr. Duff hired respondent to take over teaching social studies midway through the school year after another teacher resigned. Mr. Duff closely observed respondent's teaching after he was hired. Respondent is consistently on time and prepared. He interacts well with his students and other teachers in his department. Mr. Duff has no concerns about respondent's teaching abilities.

16. Mr. Duff learned of respondent's DUI conviction approximately two months after he was hired. Mr. Duff was not aware before hearing that respondent swore at and threatened officers. Mr. Duff found this information shocking because it is inconsistent with the conduct he typically observes from respondent. Further, he was not aware that respondent's children were in his car at the time of his DUI arrest.

Analysis

17. Clear and convincing evidence established that respondent was convicted of DUI on January 6, 2023. In *Morrison v. State Board of Education* (1969) 1 Cal.3d 214, the California Supreme Court concluded a teaching credential cannot be disciplined for immoral conduct, unprofessional conduct, or conduct involving moral turpitude "unless that conduct indicates that the [educator] is unfit to teach." (*Id.* at p.

229.) The Court outlined factors to consider when determining whether an educator's conduct demonstrates unfitness to teach, and the Commission adopted those factors by enacting California Code of Regulations, title 5, section 80302. Those factors are considered below.

LIKELIHOOD OF ADVERSE EFFECTS ON STUDENTS OR FELLOW TEACHERS

18. In assessing this factor, it is not necessary to find that a respondent's conduct caused actual harm. Rather, it is the likelihood that the conduct may impact students and fellow teachers that is to be analyzed. (See *Broney v. California Com. on Teacher Credentialing* (2010) 184 Cal.App.4th 462, 477.) No evidence of actual or likely adverse effects on any student or teacher was presented.

PROXIMITY OR REMOTENESS IN TIME

19. Respondent's conviction occurred two and a half years ago, in January 2023. This is proximate in time as respondent remains on probation from his conviction until January 2026.

TYPE OF CREDENTIAL HELD

20. Respondent's Clear Single Subject Credential allows him to teach students from preschool through twelfth grade. (Cal. Code Regs., tit. 5, § 80004, subd. (a).) With his Credential, respondent may interact with students of all ages. It is therefore imperative that he engage in professional conduct and model appropriate behavior to all students.

EXTENUATING OR AGGRAVATING CIRCUMSTANCES

21. Neither the Education Code nor the applicable regulations specify what constitutes “extenuating circumstances.” However, California Code of Regulations, title 5, section 80300, subdivision (m), defines “mitigating factor” as “an event or circumstance which demonstrates that the public, school children and the profession would be adequately protected by a more lenient degree of adverse action or no adverse action whatsoever.”

22. California Code of Regulations, title 5, section 80300, subdivision (b), lists aggravating factors, the presence of which indicate a greater degree of discipline is necessary to protect students and the teaching profession. These factors include, in pertinent part, whether: (1) the misconduct evidences multiple acts of wrongdoing or demonstrate a pattern of misconduct; (2) the misconduct was surrounded by or followed by bad faith, dishonesty or other violation of the laws governing educators; (3) that the misconduct significantly harmed a child entrusted to the care of a credential holder or applicant, significantly harmed the public or the educational system.

23. Respondent’s DUI created a significant risk of harm to himself, the public, and his children. He was previously convicted of the same offense in 2011. In mitigation, he has acknowledged that he is an alcoholic and that he cannot safely consume any amount of alcohol. Respondent has chosen to become sober and has engaged in several recovery programs to support his sobriety. However, he relapsed by consuming alcohol at least twice since his initial October 2022 sobriety date on November 9, 2024, and December 24, 2024. Respondent admitted to Fresno PD officers that he consumed alcohol on November 9, 2024. This admission is consistent with the officers’ observations that the odor of alcohol was emitting from respondent’s

body. Respondent's contradictory testimony denying his alcohol consumption on November 9, 2024, is not credible.

PRAISEWORTHINESS OR BLAMEWORTHINESS OF MOTIVES RESULTING IN THE MISCONDUCT

24. Respondent is solely responsible for his decision to drive with his children in the car after consuming alcohol. His dangerous and unlawful conduct is blameworthy.

LIKELIHOOD OF RECURRENCE

25. Respondent is engaging in AA, individual counseling, and other measures to support his sobriety. However, his recovery is new and fragile. He has relapsed twice since he first pursued sobriety after his arrest. Until respondent attains consistent long-term sobriety, a recurrence of future misconduct involving alcohol is likely.

ADVERSE IMPACT OR CHILLING EFFECT

26. Neither party presented evidence about a possible chilling effect on any person's constitutional rights. Considering the nature of respondent's conviction, such an effect is unlikely.

PUBLICITY OR NOTORIETY OF MISCONDUCT

27. No evidence was presented that respondent's conduct was either publicized or notorious. There is no evidence that anyone affiliated with the Fresno USD, other than Mr. Duff and respondent's children, are aware of respondent's conduct or conviction.

APPROPRIATE DISCIPLINE

28. Complainant proved there is cause to discipline respondent's Credential for unprofessional conduct, immoral conduct, and acts of moral turpitude. The Commission may "privately admonish, publicly reprove, revoke or suspend" respondent's Credential. (Ed. Code, § 44421.) The Commission must consider the aggravating and mitigating factors set forth above in determining the appropriate discipline. (Cal. Code Regs., tit. 5, § 80300, subds. (b), (m).)

29. Respondent demonstrated an extreme lapse in judgment by driving his children after consuming alcohol with a BAC of 0.19 percent. Although this misconduct is serious, it did not impact any students or teachers. However, discipline need not be withheld until respondent's alcohol abuse negatively impacts his teaching. (See *In re Kelley* (1990) 52 Cal.3d 487, 496; *Griffiths v. Super. Ct.* (2002) 96 Cal.App.4th 757, 772.) Such a requirement "overlooks the preventative functions of license discipline, whose main purpose is protection of the public." (*Ibid.*) Respondent has engaged in meaningful efforts to address his alcoholism since his arrest. However, he relapsed at least twice after his initial attempts at sobriety. Respondent must continue to engage in programs to support his sobriety to assure the Commission he is unlikely to misuse alcohol in the future.

30. The objective of an administrative licensing proceeding is to protect the public. Such proceedings are not for the primary purpose of punishment. (See *Fahmy v. Medical Bd. of Cal.* (1995) 38 Cal.App.4th 810, 817.) Considering all the evidence, revoking respondent's Credential would be unduly punitive. Rather, the appropriate discipline is suspending respondent's Credential for two years, staying the suspension, and placing the Credential on probation for a period of five years. The Commission may issue a stayed suspension "for a specified period of time only if the stay and

performance of specified rehabilitative or probationary duties by the credential holder during the period of the stay is deemed consistent with the purposes of professional discipline.” (Cal. Code Regs., tit. 5, § 80300, subd. (t)(1).)

31. Respondent will be placed on probationary terms to support his sobriety and protect the public. He will be required to abstain from alcohol and controlled substances and to submit to biological fluid testing to verify his ongoing sobriety. Further, he will be required to attend addiction recovery groups and individual counseling and provide documentation of the same to the Commission. A five-year term of probation is appropriate considering the severity of respondent’s misconduct and his recent relapse following a two-year period of sobriety.

LEGAL CONCLUSIONS

Burden and Standard of Proof

1. Complainant has the burden of proving the allegations in the Accusation by clear and convincing evidence to a reasonable certainty. (*Gardner v. Comm. on Professional Competence* (1985) 164 Cal.App.3d 1035, 1038-39.) Clear and convincing evidence is evidence that leaves “no substantial doubt” and is “sufficiently strong to command the unhesitating assent of every reasonable mind.” (*In re Marriage of Weaver* (1990) 224 Cal.App.3d 478, 487, quoting *Sheehan v. Sullivan* (1899) 126 Cal. 189, 193.)

Applicable Law

2. Pursuant to the Education Code, commencing with section 44000, and California Code of Regulations, title 5, commencing with section 80000, the

Commission is responsible for credentialing teachers in public schools in California, including issuing credentials and taking adverse action against applicants and credential holders.

3. Education Code section 44421 provides:

The Commission on Teacher Credentialing shall privately admonish, publicly reprove, revoke or suspend for immoral or unprofessional conduct, or for persistent defiance of, and refusal to obey, the laws regulating the duties of persons serving in the public school system, or for any cause that would have warranted the denial of an application for a credential or the renewal thereof, or for evident unfitness for service.

4. "Unprofessional conduct" includes "that which violates the rules of ethical code of a profession or such conduct which is unbecoming a member of a profession in good standing." (*Bd. of Education of the City of Los Angeles v. Swan* (1953) 41 Cal.2d 546, 553; quoting, 66 Corpus Juris, p. 55.)

5. Immoral conduct has been defined generally as that which is hostile to the welfare of the general public and contrary to good morals. (*Bd. of Education v. Weiland* (1960) 179 Cal.App.2d 808, 811.) "Immorality has not been confined to sexual matters, but includes conduct inconsistent with rectitude, or indicative of corruption, indecency, depravity, dissoluteness; or as willful, flagrant, or shameless conduct showing moral indifference to the opinions of respectable members of the community, and as an inconsiderate attitude toward good order and the public welfare." (*Ibid.*)

6. Education Code section 44345, provides in part:

The commission may deny any application for the issuance of a credential or for the renewal of a credential made by any applicant who falls under any of the following categories:

[¶] . . . [¶]

(e) Has committed any act involving moral turpitude.

7. "Moral turpitude" has been defined as "everything done contrary to justice, honesty, modesty or good morals." (*Rice v. Alcoholic Beverage Appeals Bd.* (1979) 89 Cal.App.3d 30, 36.) Further, an act involves moral turpitude if it involves a serious breach of a duty owed to another or to society. (*In re Stuart K. Lesansky* (2001) 25 Cal.4th 11, 16.)

8. Evident unfitness for service "means clearly not fit, not adapted to or unsuitable for teaching, ordinarily by reason of temperamental defects or inadequacies." (*Woodland Joint Unified School Dist. v. Comm. on Prof. Competence* (1992) 2 Cal.App.4th 1429, 1444.) "Unlike 'unprofessional conduct', 'evident unfitness for service' connotes a fixed character trait, presumably not remediable merely on receipt of notice that one's conduct fails to meet the expectations of the employing school district." (*Ibid.*)

Causes for Discipline

UNPROFESSIONAL AND IMMORAL CONDUCT

9. Complainant established by clear and convincing evidence that respondent engaged in unprofessional and immoral conduct when he drove his vehicle with a BAC of 0.19 percent while his children were with him, which resulted in a

conviction for DUI. Therefore, complainant established cause to discipline respondent's Credential under Education Code section 44421 for both unprofessional and immoral conduct.

ACTS OF MORAL TURPITUDE

10. Complainant established by clear and convincing evidence that respondent engaged in an act of moral turpitude when he drove his vehicle with a BAC of 0.19 percent. His conduct is contrary to good morals and constitutes a serious breach of the duties he owes to the public. Therefore, complainant established cause to discipline respondent's credential under Education Code sections 44421 and 44345, subdivision (e), for moral turpitude.

EVIDENT UNFITNESS FOR SERVICE

11. Complainant did not prove by clear and convincing evidence that respondent is evidently unfit for service as a teacher. Specifically, complainant did not prove that respondent is unsuitable for teaching based on a temperamental defect, inadequacy, or irremediable fixed character trait. Therefore, complainant did not establish that cause exists to discipline respondent's credentials for evident unfitness for service pursuant to Education Code section 44421.

Conclusion

12. Considering all the evidence, suspending respondent's Credential for two years, stayed, and imposing a probationary period of five years is consistent with the public health, safety, and welfare.

ORDER

The Clear Single Subject Teaching Credential issued to respondent Alexandros Robert Acedo is suspended for two years. However, the suspension is stayed, and respondent's Credential is placed on probation for five years on the following terms and conditions.

SEVERABILITY CLAUSE: Each condition of probation contained herein is a separate and distinct condition. If any condition of probation is declared unenforceable in whole, in part, or to any extent, the remaining conditions of probation, and each of them, shall not be affected. Each condition of probation shall separately be valid and enforceable to the fullest extent permitted by law.

1. NEW CREDENTIALS SUBJECT TO ORDER: Any new credential issued by the Commission to respondent during the period of probation shall be subject to the same terms and conditions of probation, as set forth herein.

2. OBEY ALL LAWS: Respondent shall obey all federal, state, and local laws and regulations, including, but not limited to, the statutes and regulations of the Commission. Except for minor traffic infractions, within 72 hours of any incident resulting in respondent's arrest, the filing of any criminal charges, or citation issued, respondent shall submit a full and detailed description of the incident to the Commission. For purposes of this condition, a "minor traffic infraction" includes only traffic violations which are punishable by a maximum of \$400, and do not subject the offender to incarceration or probation.

3. COMPLIANCE WITH PROBATION: Respondent shall fully comply with the terms and conditions of this order and cooperate with representatives of the Commission in its monitoring and investigating his compliance.

4. COOPERATION WITH COMMISSION: During the period of probation, respondent shall be available for interviews with the Commission in person or by telephone upon reasonable notice.

5. MAINTAIN CURRENT CONTACT INFORMATION: Within seven days of the effective date of this decision and order, respondent shall notify the Commission of his current mailing address and phone number where voicemail messages may be left. Respondent will notify the Commission in writing of any change of mailing address, residence address, or phone number within 10 days of such change.

6. NOTIFICATION OF EMPLOYER: Within five days of the effective date of this decision and order, respondent shall provide a true and correct copy of this decision, together with a true and correct copy of the Accusation in this matter, to his employer, if any, and to his immediate supervisor at that employer. Within five days of complying with this notification requirement, respondent shall submit proof of compliance to the Commission.

If respondent changes employment at any time during probation, he shall again comply with this notification requirement within seven days of accepting new employment and shall again submit proof of compliance to the Commission within five days of complying with this notification requirement.

7. ABSTAIN FROM DRUGS AND ALCOHOL: Respondent shall completely abstain from the possession of, consumption of, or use of alcohol and/or controlled substances, except when ordered by a health care professional legally authorized to do

so as part of documented medical treatment. Respondent shall provide documentation of prescriptions, recommendations, orders, and treatment plans of health care professionals for the use of these prohibited substances within five days following the request of the Commission.

8. DRUG AND ALCOHOL TESTING: Respondent, at his expense, shall participate in a random, biological fluid testing or a drug screening program, approved by the Commission, for the detection of alcohol and controlled substances. The length of time and frequency will be subject to approval by the Commission. Respondent is responsible for keeping the Commission informed of his current telephone number at all times. Respondent shall also ensure that messages may be left at the telephone number when he is not available and ensure that reports are submitted directly by the testing agency to the Commission, as directed. Any confirmed positive finding shall be reported immediately to the Commission by the program and shall be considered a violation of probation.

No later than 30 days after the effective date of this decision and order, respondent shall have enrolled and registered with an approved drug and alcohol testing vendor; provided that vendor with any documentation, and any information necessary for payment by respondent; commenced testing protocols, including all required contacts with the testing vendor to determine testing dates; and begun testing. At all times, respondent shall fully cooperate with the testing vendor, and the Commission or its designee, with regard to enrollment, registration, and payment for, and compliance with, testing. Any failure to cooperate shall be considered a violation of probation.

Prior to any vacation or other period of absence from the area where the approved testing vendor provides services, respondent shall seek and receive approval

from the Commission or its designee to use an alternate testing vendor to ensure testing can occur. Upon approval, respondent shall enroll and register with the approved alternate drug testing vendor, provide to that alternate vendor any documentation required by the vendor, including any necessary payment by respondent. During the period of absence from the area, respondent shall commence testing protocols with the alternate vendor, including required daily contacts with the testing vendor to determine whether testing is required, and required testing. Any failure to timely seek or receive approval from the Commission or its designee, or to timely enroll and register with, timely commence testing protocols with, or timely undergo testing with, the alternate testing vendor, shall be considered a violation of probation.

Respondent shall execute and submit to the Commission any release of information forms that the Commission may require to monitor his compliance with the terms of probation, including but not limited to the release of information forms concerning the results of bodily fluid testing performed by third parties.

9. THERAPY OR COUNSELING: No later than 30 days after the effective date of this decision and order, respondent shall at his expense, participate in therapy or counseling with a licensed psychologist or therapist competent to treat alcohol and substance use disorders, at intervals recommended by the psychologist or therapist, until the Commission releases him from this requirement. Documentation of respondent's participation in therapy or counseling shall be submitted to the Commission at intervals required by the Commission.

10. ATTENDANCE AND PARTICIPATION IN GROUP SUPPORT MEETINGS: No later than 30 days after the effective date of this decision and order, respondent shall begin attendance at an addictive behavior support group (e.g., Alcoholics Anonymous,

or other similar support group). Respondent shall attend at least one meeting of the support group per week for the duration of probation. Verified documentation of attendance shall be submitted at intervals required by the Commission.

11. VIOLATION OF PROBATION: Failure to comply with the terms of probation shall constitute a violation of probation. If respondent violates any term or condition of his probation, the Commission may refer the matter to the Attorney General's Office to file a petition to revoke probation, and after giving respondent notice and an opportunity to be heard, may set aside the stay order and impose the stayed discipline. If during the period of probation, a petition to revoke probation has been filed against respondent's Credentials, the probationary period shall automatically be extended and shall not expire until final action is taken on the petition by the Commission.

12. COMPLETION OF PROBATION: Upon successful completion of the terms of this probation, respondent's credentials shall be fully restored.

DATE: October 6, 2025



[Christopher W. Dietrich \(Oct 6, 2025 11:33:44 PDT\)](#)

CHRISTOPHER W. DIETRICH

Administrative Law Judge

Office of Administrative Hearings